

Supreme Court to consider industry bid to challenge California power to set vehicle emissions

The underlying dispute is over whether the Environmental Protection Agency has the power to let California set its own standards, which are often stricter than those set nationwide.



— The Supreme Court will decide whether industry groups have standing to sue over California's vehicle emissions standards. Kyle Grillot / Bloomberg via Getty Images

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By Lawrence Hurley

WASHINGTON — The [Supreme Court](#) said Friday that it will hear a case related to California's ability to set its own, often strict, vehicle emissions standards that include curbs on greenhouse gases.

It has become a fraught and politicized issue, especially since California began regulating greenhouse gases in an effort to combat climate change. Due to the size of the California

market, the state's regulations hold considerable sway over vehicle manufacturers.

The case stems from the Environmental Protection Agency's authority to issue national standards under the federal Clean Air Act.

The court only took up the question of whether various business interests, including liquid fuel companies, had legal standing to sue based on their argument that demand for their products would decrease under California's rules.

It did not agree to hear the much bigger issue of whether the provision allowing California to set its own standards is unlawful.

In recognition of California's historic role in regulating emissions, the law allows the EPA to give the state a waiver from the nationwide standards so that it can adopt its own.

The Obama administration granted California a waiver to regulate greenhouse gas tailpipe emissions but the first Trump administration sought to change course. When Joe Biden was elected, his administration again gave California the leeway it wanted.

The underlying California regulation was adopted in 2012. It sets standards to regulate greenhouse gas emissions and requires each manufacturer to sell a certain number of zero-emission vehicles. The state ultimately wants all cars and light trucks to be zero-emission vehicles by 2035.

The most recent EPA waiver, in 2022, prompted 17 Republican states led by Ohio and the business groups to sue. The Supreme Court did not act on the separate appeal brought by states.

Notably, some vehicle manufacturers backed the EPA in the lower court. In court papers, Solicitor General Elizabeth Prelogar pointed out that manufacturers are already meeting the state's standards.

The business challengers, meanwhile, say that the waiver "permits California to operate as a quasi-federal regulator on global climate change."

The states argued that the provision in the Clean Air Act allowing for the veto is unconstitutional because it treats California differently compared to other states.

The U.S. Court of Appeals for the District of Columbia Circuit ruled in favor of the EPA in April. 🌈



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